

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Craig Anderson	Team: Squad #7	CCRB Case #: 201506055	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 07/09/2015 11:00 PM, Sunday, 07/12/2015	Location of Incident: 42nd Precinct Stationhouse and § 87(2)(b)	Precinct: 42	18 Mo. SOL 1/9/2017	EO SOL 1/9/2017	
Date/Time CV Reported Sun, 07/19/2015 1:09 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 07/19/2015 1:09 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Thomas Olson	01600	949418	042 PCT
3. POM Michael Riggio	10159	951140	042 PCT
4. POM Jason Lopez	16092	950773	042 PCT
5. POM Edgar Duncan	20691	946961	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Force: On July 9, 2015 at the 42nd Precinct stationhouse, officers used force against § 87(2)(b)	§ 87(2)(b)
B. POM Jason Lopez	Discourtesy: On July 10, 2015 at § 87(2)(b) in the Bronx, PO Jason Lopez spoke discourteously to § 87(2)(b)	§ 87(2)(b)
C. POM Jason Lopez	Force: On July 10, 2015 at § 87(2)(b) in the Bronx, PO Jason Lopez used physical force against § 87(2)(b)	§ 87(2)(b)
D. POM Michael Riggio	Force: On July 10, 2015 at § 87(2)(b) in the Bronx, PO Michael Riggio used physical force against § 87(2)(b)	§ 87(2)(b)
E. POM Thomas Olson	Force: On July 12, 2015, PO Thomas Olson used physical force against § 87(2)(b)	§ 87(2)(b)
F. POM Edgar Duncan	Force: On July 12, 2015, PO Edgar Duncan used physical force against § 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) complained of a series of incidents with officers from the 42nd Precinct that occurred over several days.

On July 9, 2015 at approximately 11 p.m., § 87(2)(b) went to the 42nd Precinct stationhouse because he was under the influence of cocaine laced with an unknown substance that caused him distress and wanted the police to help him get to New Jersey. An officer inside the stationhouse told him to leave. § 87(2)(b) left the stationhouse and began screaming. A group of five to six plainclothes officers allegedly came outside, grabbed § 87(2)(b) dragged him face-down along the sidewalk, and threw him on the ground. § 87(2)(b) stood up and the officers allegedly punched him ten or more times in the face, back, and head, and kicked him about five times in the face and legs (**Allegation A**).

§ 87(2)(b) was not arrested during the above incident. An FDNY ambulance responded to the stationhouse and transported him to § 87(2)(b) (see Privileged Documents). Sometime in the early hours of July 10, 2015, § 87(2)(b) walked out of the hospital without being medically discharged. At 1:57 a.m., he walked into a parking garage at § 87(2)(b) § 87(2)(b) and began opening the doors of cars. The lot attendant, § 87(2)(b) called the police. § 87(2)(b) left, and PO Jason Lopez and PO Michael Riggio found him at § 87(2)(b) allegedly attempting to break into the building with a credit card. The officers approached § 87(2)(b) PO Lopez allegedly told § 87(2)(b) to “suck (his) dick,” and the officers punched him about fifteen times in the face and head and kicked him five or more times in the legs (**Allegations B, C, and D**).

§ 87(2)(b) a resident of the building, came outside and briefly interacted with § 87(2)(b) The officers called an ambulance, which took him to § 87(2)(b) where he remained until 6 a.m. He was taken to the 42nd Precinct stationhouse for arrest processing (see Board Review 01).

On July 12, 2015 at approximately 12:35 a.m., § 87(2)(b) – who did not previously know § 87(2)(b) – parked his car outside the 42nd Precinct stationhouse. § 87(2)(b) got in the passenger seat, hoping that § 87(2)(b) would take him to New Jersey. § 87(2)(b) allegedly grabbed a bag from § 87(2)(b)'s back seat and tried to hit him on the head with it.

§ 87(2)(g)
§ 87(2)(b) said he ran across the street because § 87(2)(b) was trying to fight him. He asked a group of ten to twelve uniformed officers for help. The officers threw him on a pile of garbage and beat him for about ten minutes. They punched him more than thirty times, kicked him at least ten times, and stomped on him several more times (**Allegation E and F**).

PO Thomas Olson and PO Edgar Duncan said they were loading their car to begin their tour when § 87(2)(b) walked up and hit PO Olson on the head with a bottle. The officers then forcibly restrained § 87(2)(b) and arrested him (see Board Review 02). § 87(2)(b) was taken to Central Booking. At 11:27 a.m., EMS responded to Central Booking and took § 87(2)(b) to § 87(2)(b) because he was exhibiting unusual behavior. § 87(2)(b) was treated for intoxication and remained at the hospital until § 87(2)(b).

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to § 87(2)(b)'s arrests.
- As of October 14, 2015, an inquiry with the Comptroller's office regarding any notice of claim filed by § 87(2)(b) is still pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint by § 87(2)(b) § 87(2)(g)
[REDACTED]
[REDACTED]
- PO Lopez has been a member of the NYPD for four years and this is the first CCRB complaint against him.
- PO Riggio has been a member of the NYPD for four years and there are two prior CCRB complaints against him. One contained a physical force allegation, which was unfounded.
- PO Olson has been a member of the NYPD for five years. There is one other CCRB complaint against him, which was closed as complainant uncooperative. § 87(2)(g)
[REDACTED]
- PO Duncan has been a member of the NYPD for seven years and there are four other CCRB complaints against him, none of which were substantiated. Two other cases include force allegations; they were closed as complainant uncooperative.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g)
[REDACTED]
[REDACTED]
- Regarding the July 10, 2015 incident, § 87(2)(b) was unsure whether only PO Lopez used force against him, or if his partner was involved. Both PO Lopez and PO Riggio acknowledged being involved in a physical struggle with § 87(2)(b) § 87(2)(g)
[REDACTED]
[REDACTED]
- § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED].

Allegation A – Force: On July 9, 2015 at the 42nd Precinct stationhouse, officers used force against § 87(2)(b)

§ 87(2)(b) did not know the date or time of this incident, but said he suffered a reaction from snorting laced cocaine (see Board Review 05). He went to the 42nd Precinct stationhouse and asked the desk sergeant to help him get to New Jersey. The desk sergeant told him to leave. § 87(2)(b) went outside and opened the doors of cars on the street. One car had a plainclothes officer inside, who told § 87(2)(b) to go to the stationhouse. § 87(2)(b) returned to the stationhouse, and

Allegation B – Discourtesy: On July 10, 2015 at § 87(2)(b) in the Bronx, PO Jason Lopez spoke discourteously to § 87(2)(b)

Allegation C – Force: On July 10, 2015 at § 87(2)(b) in the Bronx, PO Jason Lopez used physical force against § 87(2)(b)

Allegation D – Force: On July 10, 2015 at § 87(2)(b) in the Bronx, PO Michael Riggio used physical force against § 87(2)(b)

§ 87(2)(b) did not remember what he did between leaving the hospital, as described in the above allegation, and encountering police officers for the second time. He said he was trying to visit his friend at § 87(2)(b) when PO Lopez and PO Riggio arrived. He denied tampering with the building's lock. PO Lopez approached § 87(2)(b) and suddenly pushed him against the wall of the building. § 87(2)(b) pushed PO Lopez's hands off of him, but denied resisting in any other way. PO Lopez said, "Suck my dick." PO Lopez – and possibly PO Riggio, though § 87(2)(b) was unsure of this – beat § 87(2)(b) up. They punched him about fifteen times in the face and head and kicked him five or more times in the legs, after which they put him in the police car. During his interview, § 87(2)(b) had scratches visible on his elbow, which he believed resulted from this incident (see Board Review 09).

§ 87(2)(b) the parking garage attendant, was contacted by phone and said he remained at the garage and did not see § 87(2)(b)'s arrest (see Board Review 10). § 87(2)(b) who lives in § 87(2)(b) provided a phone statement (see Board Review 11). When she left her building, § 87(2)(b) – who she knows slightly from living in the same neighborhood – was handcuffed in the back seat of the police car. He was somewhat incoherent and appeared to be under the influence of drugs. § 87(2)(b) told her that he was not doing anything and that the officers pushed him against the wall and beat him up. § 87(2)(b) saw a small scar on § 87(2)(b)'s forehead, and he had a small amount of blood on him, but she was unsure where it came from.

The records from § 87(2)(b) list § 87(2)(b)'s chief complaint as, "I was resisting arrest. I smoked K2 and drank (a) few beers." He had a superficial abrasion to his right forehead, but it was not bleeding. This is visible in his arrest photo (see Board Review 12). § 87(2)(b)'s primary diagnosis was intoxication.

PO Lopez said that the officers pursued § 87(2)(b) when he left the parking garage. They found him trying to break into § 87(2)(b) with a credit card. PO Lopez asked what he was doing, and § 87(2)(b) said, "I'm trying to go buy some weed." § 87(2)(b) was sweating and, when asked why, told the officers he took ecstasy. § 87(2)(b) would not look at PO Lopez and tried to walk away. At some point during their conversation, § 87(2)(b) threw a punch at PO Riggio's face. He and PO Riggio got in a fight against the side of the building. § 87(2)(b) tried to pull his arms away. When asked if PO Riggio punched § 87(2)(b) PO Lopez said that § 87(2)(b) and PO Riggio were "both swinging," but he did not actually see PO Riggio's strikes make direct contact. PO Lopez assisted by grabbing § 87(2)(b)'s arms. The fight lasted only a few seconds before § 87(2)(b) was handcuffed. PO Lopez denied recognizing the abrasion on § 87(2)(b)'s forehead visible in his arrest photo. He denied saying "suck my dick" to § 87(2)(b) (see Board Review 08).

PO Riggio § 87(2)(g) said that § 87(2)(b) asked to go the hospital before the fight began. They called an ambulance but, as they

waited, § 87(2)(b) became enraged by the price of a car with a “for sale” sign parked nearby. § 87(2)(b) started pacing up and down and told PO Riggio he would “fuck (him) up.” The officers tried to move § 87(2)(b) against the wall of the building to stop him from pacing. § 87(2)(b) threw a punch at PO Riggio’s face, but PO Riggio dodged the blow. The officers struggled to grab § 87(2)(b)’s arms and eventually handcuffed him. When asked if he punched § 87(2)(b) during the struggle, PO Riggio said that he did not think he did. When shown the abrasion in § 87(2)(b)’s arrest photo, PO Riggio said that § 87(2)(b) had that abrasion – and numerous other scrapes and bruises on different parts of his body – before this incident occurred. He denied hearing PO Lopez say, “suck my dick” (see Board Review 07).

Officers must use the minimum force necessary to effect an arrest. Patrol Guide, Section 203-11 (see Board Review 13).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation E – Force: On July 12, 2015, PO Thomas Olson used physical force against

§ 87(2)(b)

Allegation F – Force: On July 12, 2015, PO Edgar Duncan used physical force against

§ 87(2)(b)

§ 87(2)(b) said that this incident began when he got into the car of a stranger – known to the investigation as § 87(2)(b) – that was outside the 42nd Precinct stationhouse. He hoped the driver would take him to New Jersey. § 87(2)(g)

§ 87(2)(b) yelled at § 87(2)(b) and reached for something in the back seat. § 87(2)(b) got out and approached a group of ten or twelve uniformed officers across the street, hoping they would

protect him from § 87(2)(b) who wanted to fight him. The officers allegedly threw him on a pile of garbage and beat him for ten minutes. They punched him more than thirty times, kicked him more than ten times, and stomped on him several times. They struck him in the face, back, stomach, and legs. § 87(2)(b) believed he was taken to § 87(2)(b) shortly after this, but medical records show this to be incorrect: he was not taken to § 87(2)(b), but was taken to § 87(2)(b) about twelve hours later, from Central Booking. § 87(2)(b) did not believe he was arrested this time, but police records show that he was (see Board Review 02). His arrest photo shows minor abrasions similar to those in his prior arrest photo (see Board Review 14).

The records from § 87(2)(b) indicate that Central Booking staff called an ambulance because § 87(2)(b) was “acting out of control and talking to (him)self.” He told them he did drugs the night before. § 87(2)(b) staff diagnosed him with a “drug induced psychotic disorder.” At the hospital he was laughing for no reason, talking to himself, and “trying to assault random people.” This behavior continued for several hours, but he eventually fell asleep and, by 9:52 a.m. the next day, he was calm and cooperative. No physical injuries are noted on the records from this hospital visit (see Privileged Documents).

§ 87(2)(b) said he was parking his car when § 87(2)(b) who he did not know, sat in the passenger seat. § 87(2)(b) started playing with § 87(2)(b)'s radio. When § 87(2)(b) told him not to touch the radio, § 87(2)(b) reached in the back seat, grabbed a bag, and tried to hit § 87(2)(b) in the head with it. § 87(2)(b) got out, and § 87(2)(b) got out after him. Several uniformed officers, who were nearby, approached. They gave § 87(2)(b) a bottle of water and tried to send him on his way. § 87(2)(b) walked across the street, and § 87(2)(b) believed he hit a police officer on the head with the water bottle. § 87(2)(b) heard a commotion, but could not see the struggle. § 87(2)(b) crossed the street and saw § 87(2)(b) on the ground in handcuffs. He believed three or four officers were involved in the struggle with him, and that it lasted about one minute. He did not see any injuries on § 87(2)(b). Two officers, known to the investigation as PO Olson and PO Duncan, took a complaint from § 87(2)(b) (see Board Review 15).

PO Olson said he was putting his bag in the trunk of his police vehicle, preparing to begin patrol, when § 87(2)(b) walked up behind him and said, “Put that shit in the trunk.” PO Olson turned around to see who it was, and § 87(2)(b) struck him in the head with the cap of an empty plastic bottle two times. This caused pain, but no injuries. § 87(2)(b) raised the bottle to strike PO Olson again, and PO Olson pushed him against a nearby wall to prevent this. He tried to grab § 87(2)(b)'s hands, but § 87(2)(b) refused to give them up. During the struggle, they both fell on a pile of garbage. PO Duncan came to assist. § 87(2)(b) held his hands under his body to avoid being cuffed, but the officers managed to pry his hands out from under him and handcuff him. The struggle lasted twenty to thirty seconds. A few other officers PO Olson could not identify came over after they handcuffed § 87(2)(b) but they were not involved in the struggle (see Board Review 16). PO Duncan's statement was generally consistent with PO Olson's (see Board Review 17). They both denied punching, kicking, or stomping on § 87(2)(b).

Officers must use the minimum force necessary to effect an arrest. Patrol Guide, Section 203-11 (see Board Review 13).

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Pod: 7

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date